



CHAPTER lxxviii.

An Act to consolidate and amend the constitution A.D. 1926.
Acts and regulations of the Scottish Widows' —
Fund and Life Assurance Society to confer
further powers on that Society and for other
purposes. [4th August 1926.]

WHEREAS the Scottish Widows' Fund and Life Assurance Society (hereinafter called "the Society") was formed at Edinburgh in the year one thousand eight hundred and fourteen upon the principle of mutual assurance by and for the purposes mentioned in the deed of constitution and articles and regulations of the said Society bearing date the twenty-ninth day of July one thousand eight hundred and fourteen and subsequent days and recorded in the Books of Council and Session in Scotland on the fourth day of October in the same year :

And whereas by an Act of Parliament passed in the year one thousand eight hundred and forty and intituled "An Act to enable the Scottish Widows' Fund and Life Assurance Society to sue and be sued" and for other purposes relating to the said Society" (hereinafter called "the Act of 1840") the Society was authorised to take and hold property in the names of trustees and to sue and be sued and various other provisions were thereby made for facilitating the general management of the affairs of the Society :

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And whereas by the Scottish Widows' Fund and Life Assurance Society's Incorporation Act 1861 (hereinafter called "the Act of 1861") the Society was incorporated and empowered to carry on business according to the said deed of constitution and articles and regulations subject to the conditions and declarations and with the powers and privileges in that Act set forth and the Act of 1840 was repealed :

And whereas by the Scottish Widows' Fund and Life Assurance Society's Act 1882 (hereinafter called "the Act of 1882") provision was made for regulating the constitution and affairs of the Society and it was enacted that the provisions of the Act of 1882 and of the Act of 1861 as amended by the Act of 1882 together with the articles and regulations set forth in the schedule to the Act of 1882 should form the constitution articles and regulations of the Society and should to all intents and effects supersede and come in place of the said deed of constitution and articles and regulations dated the twenty-ninth day of July one thousand eight hundred and fourteen and subsequent dates and the byelaws passed in terms thereof but the said deed articles and regulations were not formally cancelled or annulled :

And whereas by the Act of 1882 provision was made for enabling the articles and regulations set forth in the schedule to that Act to be altered by resolution in manner in that Act mentioned :

And whereas by the Act of 1882 certain specific sections of the Act of 1861 were repealed and all the provisions of the Act of 1861 in so far as inconsistent with the provisions of the Act of 1882 were also repealed but it was provided that nothing in the Act of 1882 contained should be interpreted to affect the provisions of the Act of 1861 except in so far as necessary to give effect to the express provisions of the Act of 1882 :

And whereas by the following Acts and Orders, namely :—

The Scottish Widows' Fund and Life Assurance Society's Act 1883;

The Scottish Widows' Fund and Life Assurance Society's Act 1891;

The Scottish Widows' Fund and Life Assurance Society's Act 1900;

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The Scottish Widows' Fund and Life Assurance Society's Order 1919; A.D. 1926.

The Scottish Widows' Fund and Life Assurance Society's Order 1922;

further powers were conferred upon the Society and further provisions were made with respect to the affairs of the Society :

And whereas the articles and regulations set forth in the schedule to the Act of 1882 have been altered from time to time by resolution in accordance with the powers in that Act contained :

And whereas it is expedient that the constitution laws and regulations to which the Society is now subject under and pursuant to the said recited Acts and Orders should be consolidated and amended and that further powers should be conferred upon the Society and the directors thereof and that further and better provision should be made for the regulation of the Society's affairs :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Scottish Widows' Fund and Life Assurance Society's Act 1926. Short title.

2. In this Act and in the schedule thereto the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say) :— Interpretation.

“ The Society ” means the Scottish Widows' Fund and Life Assurance Society;

“ The Laws of the Society ” means this Act and any subsequent local personal or private Act of Parliament or Order confirmed by Parliament relating to the affairs of the Society and the regulations of the Society;

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“The regulations of the Society” means the regulations set forth in the schedule to this Act as the same may from time to time lawfully be amended or extended or other the regulations for the time being lawfully substituted in place thereof;

“Policy” means the instrument evidencing a contract of assurance annuity or insurance by the Society or in respect of which the Society has undertaken liability for the payment of any money on the happening of any contingency or event whether dependent on or connected with life or not;

“Life policy” means any policy which is required or permitted to be included in life assurance business under and for the purposes of any general Act governing the business of assurance and for the time being in force;

“Participating life policy” means a life policy carrying immediate rights of participation in the divisible surplus of the Society but does not include a policy carrying the right to deferred participation in such surplus unless and until the period of deferment has expired;

“Member” means member for the time being of the Society;

“Director” means ordinary director for the time being of the Society and does not mean or include an extraordinary director or member of a local board;

“Extraordinary director” means extraordinary director for the time being of the Society.

Commence-
ment of
Act.

3. This Act shall come into operation on and from the date of the passing of this Act which date is in this Act referred to as “the commencement of this Act.”

Saving for
general
Acts.

4. Nothing in this Act shall be deemed to exempt the Society from the provisions of the Assurance Companies Act 1909 or of any general Act passed during the present or any future session of Parliament affecting assurance companies formed previously to the passing thereof.

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5. The Companies Clauses Consolidation (Scotland) Act 1845 and the Acts amending the same shall not apply to the Society or its undertaking.

Companies
Clauses Acts
not to apply.

6. Subject to the provisions of this Act the deed of constitution and articles and regulations of the Society bearing date the twenty-ninth day of July one thousand eight hundred and fourteen and subsequent days and recorded in the Books of Council and Session in Scotland the fourth day of October in the same year and the Scottish Widows' Fund and Life Assurance Society's Acts 1861 to 1922 and all laws byelaws articles regulations and ordinances made in pursuance of the said deed or the said Acts or any of them including the articles and regulations scheduled to the Scottish Widows' Fund and Life Assurance Society's Act 1882 as altered under the powers by that Act conferred are hereby repealed and cancelled without prejudice to anything done or suffered thereunder.

Repeal.

7.—(1) Notwithstanding such repeal as aforesaid the Society shall continue to be incorporated by its present name of the Scottish Widows' Fund and Life Assurance Society with perpetual succession and a common seal and shall have power to sue and be sued by such name as aforesaid.

Corporate
status of
Society.

(2) Subject to the provisions of this Act the members of the Society existing at the commencement of this Act shall continue to be members of the Society and the Society and any trustee or trustees on its behalf shall continue to hold and be entitled to enjoy and recover all property of every description (including things in action) which immediately before the commencement of this Act belonged to or was vested in the Society or to or in such trustee or trustees on its behalf or to which the Society or such trustee or trustees on its behalf was or were then entitled.

(3) The Society shall have power to acquire hold and dispose of lands without any licence in mortmain and further shall have such constitution objects and powers and be subject to such articles and regulations for its government and the management of its business and other matters as are contained in the Laws of the Society.

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Continuance
of present
directors
officers &c.
in office.

8. Notwithstanding such repeal as aforesaid and subject to the Laws of the Society the directors extraordinary directors president vice-presidents local directors trustees auditor officers and servants of the Society who are in office at the commencement of this Act shall continue to hold and enjoy their respective offices and employments.

Saving for
assurances
actions &c.

9. Notwithstanding such repeal as aforesaid or any other provisions of this Act :—

(a) All assurances deeds mortgages bonds contracts agreements securities awards and other acts and things made and entered into executed or done by or with the Society or any person or persons on its behalf and in force at the commencement of this Act shall be as valid and effectual to all intents in favour of against and with reference to the Society as if this Act had not been passed;

(b) All policies bonds and other obligations and generally all debts and liabilities of whatsoever kind made granted issued incurred or undertaken by and valid and subsisting against the Society at the commencement of this Act shall be and are hereby declared to be valid and subsisting against the Society as if the same had been made granted issued incurred or undertaken by the Society under the authority of this Act and all policies existing at the commencement of this Act shall entitle the holders thereof to the same benefits and remedies secured by the terms of such policies as they would have had if this Act had not been passed;

(c) Any action arbitration or other proceeding or right of action reference to arbitration or other proceeding pending or existing at the commencement of this Act by with against or in favour of the Society or any person or persons on its behalf shall not abate or be prejudicially affected by the passing of this Act but may be continued or commenced and carried on by with against or in favour of the Society as if this Act had not been passed;

- (d) All books and documents of or concerning the Society which if this Act had not been passed would have been admitted in evidence shall be admitted in evidence as if this Act had not been passed; A.D. 1926. —
- (e) All or any byelaws rules resolutions orders and forms in force at the commencement of this Act pursuant to the statutory provisions theretofore governing the Society may by resolution of the directors be continued in force for such time and to such extent as may be prescribed by the resolution.

10. The business of the Society may be carried on in Great Britain and in any other part of the world whether within His Majesty's dominions or not The objects business and powers of the Society are :—

- (1) To grant all such assurances with or without the right to participate in the surplus or profits of the Society for the payment of money on the happening of any contingencies or events whether dependent on or connected with life or not and to grant all such annuities as may by law be granted and as the directors may think fit to grant :
- (2) To re-assure such part of all or any of the risks of the Society and undertake such authorised risks by way of re-assurance as the directors may from time to time think fit :
- (3) To purchase and deal in and lend money on life reversionary and other interests in property of all kinds whether absolute or contingent or expectant and whether determinable or not and to acquire lend money on redeem cancel or extinguish by purchase surrender or otherwise any policy annuity security grant or contract issued made or taken over or entered into by the Society :
- (4) To hold and retain or to dispose of for the purposes of the Society all property investments securities or other estate or assets heritable or moveable real or personal held by the Society or by others on its behalf immediately prior to the commencement of this Act :

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- (5) To acquire and hold lands without any licence in mortmain :
- (6) To purchase take on lease or in exchange hire or otherwise acquire any real or personal or heritable or moveable property and any rights or privileges which the Society may think necessary or convenient or capable of being profitably dealt with in connexion with any of the property business or rights for the time being of the Society :
- (7) To sell exchange mortgage charge lease manage maintain build upon develop or otherwise improve deal with or dispose of the lands of the Society or any part thereof or any estate or interest therein or relating thereto as the directors think fit :
- (8) To invest lend out and deal with the moneys of the Society not immediately required in such manner as may from time to time be authorised by the Laws of the Society :
- (9) To sell exchange improve manage develop enfranchise lease mortgage dispose of turn to account or otherwise deal with all or any part of the property (other than lands) investments securities assets or rights of the Society :
- (10) To undertake and execute trusts of all kinds and to undertake the offices of trustee (other than a trustee in bankruptcy or a trustee under a deed of arrangement with creditors) executor administrator agent factor or treasurer and to keep for any company government authority or body any register relating to any stocks funds shares or securities and to undertake any duties in relation to the registration of transfers the issue of certificates or otherwise and to undertake all kinds of agency business :
- (11) To enter into arrangements with any government or authority supreme municipal local or otherwise and to obtain from any such government or authority all rights concessions and privileges that may seem conducive to the objects of the Society or any of them :

- (12) To enter into and carry into effect any contract or agreement for purchasing acquiring or taking over all or any of the business property rights and liabilities of or amalgamating with or acquiring an interest in any other society association corporation or company carrying on any business or undertaking within the objects of the Society or for undertaking paying and performing all or any of the assurances annuities and engagements of any such other society association or company or for selling or otherwise disposing of all or any of the business property rights and liabilities of the Society to any other society association or company : A.D. 1926.
- (13) To give to any persons or any class or section of persons who are insured or insure or have other dealings with the Society and that whether such persons or class or section of persons may or may not be members of the Society any rights over or in relation to any fund or funds or a right to participate in the profits of the Society or in the profits of any particular branch or part of its business either equally with other persons or classes or sections of persons or otherwise or any preference in ranking or other right privilege advantage or benefit and to appropriate and set apart any such fund or funds for these or other specific purposes whether by way of trust or otherwise and with or without appropriation of specific investments :
- (14) To establish and support or to aid in the establishment and support of associations institutions trusts funds or schemes calculated to promote the goodwill or to encourage the business of the Society or to benefit employees or ex-employees of the Society or their wives widows families dependents or connexions and to grant pensions and allowances to and to make payments for or towards insurance of any benefit for any employee ex-employee or other such person as aforesaid and to subscribe

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or guarantee money to or for objects connected with the employees or business of the Society :

- (15) To draw accept endorse discount execute and issue bills of exchange promissory notes and other negotiable or transferable instruments :
- (16) To raise or borrow or secure the payment of money of such amounts in such manner and on such terms as may seem expedient and among other modes by the issue of bonds debentures or debenture stock whether perpetual or redeemable and charged or not charged upon the whole or any part of the property and rights of the Society both present and future and to redeem purchase or pay off such securities :
- (17) To enter into partnership or into any arrangement for sharing profits union of interests joint adventure reciprocal concession or co-operation or otherwise with any person or company carrying on or engaged in or about to carry on or engage in any business or transaction which the Society is authorised to carry on or engage in and to take or otherwise acquire and hold shares or stock in or debentures debenture stock mortgages bonds obligations or securities of and to subsidise or otherwise assist any such person or company and to make and carry out arrangements for giving the Society the entire or partial control or management or benefit of the business of any such person or company and to guarantee dividends or interest on shares stock debentures debenture stock mortgages bonds obligations or securities of any company :
- (18) To form or assist in forming any society or company for the purpose of carrying on as principal or as agent for the Society any business which the Society is authorised to carry on or for the purpose of acquiring the undertaking of the Society or any part thereof or for any other purpose whatsoever that may seem conducive to any of the interests of the Society and to hold shares stock debentures debenture stock or any other interest in

any such society or company and to dispose of such shares stock debentures debenture stock or interest : A.D. 1926.
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- (19) To procure the Society to be registered or recognised in any country state or place outside Great Britain and to make any investments or deposits in such names and manner as may be required and to comply with any conditions necessary or expedient in order to enable the Society to carry on business in any country State or place outside Great Britain and to establish or guarantee local societies or companies or branch offices constituted or regulated under or by local laws for the purpose of carrying on any business which the Society is authorised to carry on :
- (20) To allow to remain in abeyance or to discontinue from time to time any branch or part of the business of the Society :
- (21) To sell the undertaking of the Society or any part or branch thereof for such consideration as the Society may think fit and in particular for shares stock policies debentures debenture stock or other securities of any other society or company having objects altogether or in part similar to those of the Society :
- (22) To lend money with or without security to such persons and on such terms as may seem expedient and in particular to persons insuring or having other dealings with the Society :
- (23) To underwrite or guarantee the subscription of any stocks funds shares debentures mortgages or securities and to subscribe for the same conditionally or otherwise or to act as agents for the issue of the same :
- (24) To receive money on deposit from members and policy holders of the Society and others for such period and on such terms and conditions special or general as the Society may think fit :
- (25) To take make support or oppose any proceedings or application for obtaining Acts of Parliament Provisional Orders or other legislative

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acts which in the opinion of the Society may beneficially or adversely affect the Society :

- (26) To remunerate any persons for services rendered or to be rendered in placing or assisting to place any shares or stock or any debentures debenture stock or other securities of the Society or in or about the conduct of the business of the Society :
- (27) To do all or any of the above things in any part of the world and either as principals agents trustees contractors or otherwise and either alone or in conjunction with others and either by or through agents sub-contractors trustees or otherwise :
- (28) To do all such other things as may be considered incidental or conducive to the attainment of the objects business and powers of the Society or any of them.

Govern-
ment and
direction of
Society's
affairs.

11.—(1) Subject to the provisions of the Laws of the Society the government direction and superintendence of the affairs of the Society and the exercise of the powers of the Society shall be vested in the directors except in relation to any matters which by the Laws of the Society are placed under the control of a meeting of the Society and except also (if and so long as the Laws of the Society shall provide for the existence of extraordinary directors and the constitution of an extraordinary court of directors) in relation to any matters which by the Laws of the Society are placed under the control of an extraordinary court of directors.

(2) Subject to the provisions of this Act the number qualification powers duties mode of election retirement and remuneration of the directors and the extraordinary directors and other matters relating to the directors and extraordinary directors shall be as provided by the regulations of the Society.

Head office.

12. The head office and domicile of the Society shall be in the city of Edinburgh unless and until it shall be otherwise determined at a meeting of the Society Provided that the Society shall have and be deemed to have a domicile also in the city of London.

13. The membership of the Society shall comprise every person who either was a member of the Society immediately before the commencement of this Act or is thereafter admitted as a member in accordance with the Laws of the Society if and so long as such person shall not have ceased to be a member through death or through the funds of the Society having become liable for payment of the sole or final benefit in respect of the policy in respect of which his membership is derived or through the admission of some other person as member in respect of such policy or through such policy becoming void or in such other manner as the Laws of the Society may prescribe.

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Membership.

14. No person effecting an assurance with the Society shall unless otherwise expressly agreed in writing between the Society and such person be considered as assured by the Society until he has paid the single or first premium on the policy contracted to be granted to him in terms of the Laws of the Society although the policy may have been executed by the Society.

No assur-
ance deemed
to be
effected
until pay-
ment of
premium.

15. No member of the Society shall as such be liable for any debts due or to become due by the Society or for any sum or sums that shall become due in virtue of any policy already granted or that may at any time be granted or issued by the Society and all creditors and other persons having claims against the Society shall only be entitled to make such claims effectual against the funds or appropriate fund of the Society and shall in no case or event whatever be entitled to make any demand or claim for or on account of the sums so falling due against any individual member of the Society and it shall not be competent to nor in the power of the Society or the directors or the liquidator of the Society or other person on any account or occasion whatsoever to make any call upon any individual member of the Society as such for any sum of money in addition to the contributions payable by such member in terms of the policy or policies which forms or form the basis of his membership of the Society.

Members
not to be
liable
personally
for debts of
Society.

16. The Society may from time to time with the sanction of a general meeting change its name but no such change of name shall be effective until it is

Change of
name.

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A.D. 1926. advertised in the Edinburgh Gazette and the London Gazette and no such change of name shall affect any rights or obligations or render defective any legal proceedings instituted or to be instituted by or against the Society and any legal proceedings may be continued or commenced by or against the Society by its new name that might have been continued or commenced by or against the Society by its former name.

Regulations
of Society.

17.—(1) The regulations in the schedule to this Act shall be the regulations of the Society and they or other the regulations for the time being of the Society may be altered by any repeal or amendment thereof or of any of them or by any addition thereto in the following manner and subject to the following conditions.

(2) In this section "special court" means a special meeting of the directors and extraordinary directors together if and so long as there shall be extraordinary directors of the Society and means a special meeting of the directors if and so long as there shall be no extraordinary directors of the Society Provided that notwithstanding anything contained in the regulations notice of a special court to be held under and for the purposes of this section shall be sent to the directors and extraordinary directors (if any) at least three weeks previous to the meeting specifying shortly the objects of the meeting.

(3) If a special court shall by a three-fourths majority of the members thereof personally present resolve that any alteration repeal innovation or addition of or to the regulations would be of advantage to the Society the same shall be taken into consideration at the next stated annual meeting of the Society or at a meeting to be specially called for the purpose by notice inserted in one or more newspapers published in Edinburgh in Glasgow and in London once in each of three successive weeks with an interval of not less than six clear days between each publication such meeting to be held not earlier than the third day after the last insertion of such notice The notice calling the stated or special meeting shall state the general purport of the proposed alteration and that a copy of the proposed alteration repeal innovation or addition will

be open for inspection by any member of the Society at the head office of the Society and if a motion approving thereof be carried by a majority of three-fourths of the members entitled to vote present at such meeting a special meeting shall be called for a date not less than six weeks nor more than eight weeks from the date of the previous stated or special meeting and such second meeting shall be called by a similar notice in the newspapers as aforesaid and if at the said second meeting a motion approving of the said alteration repeal innovation or addition shall again be carried by a majority of the members present entitled to vote the regulations shall be altered repealed or added to accordingly.

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(4) A copy of every resolution for repeal amendment or addition subscribed by the chairman of the meeting at which the resolution approving the same was confirmed shall be recorded in the Books of Council and Session and a copy of every such resolution shall be forwarded by the Society to any member at his request on payment of one shilling or such less sum as the directors may prescribe.

18. The rates of contributions or premiums to be charged by the Society in respect of policies issued by the Society shall be settled or regulated by the directors on such terms special or general as the directors may from time to time prescribe or approve and with such differentiation as the directors may think proper according to the amounts assured or to the occupations or places of residence of the lives involved or to any other considerations which in the opinion of the directors should be taken into account and in any case or cases or class of cases where in the opinion of the directors the usual rate of contribution or premium is for any reason unsuitable the contribution or premium shall be according to such special rate or upon such special scale of payment and generally under such special conditions as the directors may determine.

Rates of
premiums.

19. No alteration in the Society's terms or tables of contributions or premiums shall entitle either the Society on the one hand or the members on the other to require that the altered contributions or premiums shall apply to or that any readjustment of benefits

Alterations
in terms or
tables of
contribu-
tions.

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A.D. 1926. — consequential thereon shall be made in respect of contracts already in existence when the alteration takes effect.

Investment
of Society's
funds.

20. It shall be lawful for the directors to lay out and invest the moneys funds and property of the Society in or upon any investments securities or property whatsoever which are for the time being authorised by the Laws of the Society and to continue to hold any investments securities or property in or upon which any of the moneys funds and property of the Society are invested at the commencement of this Act which investments securities or property shall be deemed to be and always to have been investments securities or property authorised by the constitution and Laws of the Society for the time being in force.

Power
to vary in-
vestments.

21. It shall be in the power of the directors at pleasure to alter change sell exchange or dispose of any investments securities or property existing at the commencement of this Act or any investments securities or property which may hereafter be acquired or taken on behalf of the Society and again to lay out the proceeds thereof from time to time in or upon any investments securities or property authorised by the Laws of the Society.

Periodical
investiga-
tions into
financial
condition of
Society and
declaration
and allo-
cation of
surpluses.

22.—(1) An investigation into the financial position of the Society shall be made at intervals of five years or at such shorter intervals as may be prescribed from time to time by the directors.

(2) At each such investigation the whole assets and liabilities of the Society present and prospective shall be brought into account and for the purposes of such investigation the assets of the Society shall be valued at such sums as may appear to the directors to be safe and equitable Provided that the aggregate value thereof be not estimated beyond what is in the opinion of the directors the aggregate market or realisable value unless for reasons to be set out in the directors' report to the members upon the results of the investigation.

(3) At each investigation the obligations and liabilities of the Society shall be valued on such basis

or bases and in such manner and with such special reserves (if any) as the directors shall think fit. A.D. 1926.

(4) The surplus at each investigation shall be determined by deducting from the value of the assets found as aforesaid the amount of the liabilities of the Society found as aforesaid and after setting aside from such surplus such sums as the directors think fit to reserve funds special or general and allowing for such sums as they think fit to be carried forward instead of being so set aside or of being divided the directors shall declare the amount (if any) of the divisible surplus of the Society and the declaration by the directors of the amount of such divisible surplus shall be final and conclusive.

(5) The directors may from time to time make such regulations as they in their absolute discretion may think fit for the purpose of providing for or making out of the divisible or accruing surplus any payments or benefits to or allowing or conferring any benefits privileges or advantages to or upon any persons or any class of persons who have effected or shall effect policies or who have transacted or shall transact with the Society business other than life policies or business and subject thereto the balance of the divisible surplus shall be divided by way of bonus among the holders of participating life policies with the Society at such rate or rates and on such principles and by such methods as the directors may from time to time determine.

(6) In addition to the bonuses to be allotted at the periodical investigations as hereinbefore provided intermediate bonuses may be allowed in the case of participating life policies which shall become payable between one period of investigation and another which intermediate bonuses shall be at such rate or varying or differential rates and with such privileges (if any) of surrender as the directors shall from time to time fix and prescribe.

(7) All sums which at the commencement of this Act stand to the credit or which may hereafter be placed to the credit of any reserve fund special or general may from time to time be applied and dealt with for such purposes in such manner and upon such terms and conditions as the directors shall think fit.

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Directors
may by
arrange-
ment limit
&c. right of
participa-
tion in
surplus or
profits.

23. The directors shall have power by arrangement with any applicant for assurance or the holder of any policy and either at the time when a proposal for assurance is made or at any time thereafter to limit postpone or otherwise restrict his right of participation in the surplus or profits of the Society or to commute his share of the surplus or profits or any part thereof past or future for a payment in cash or a reduction of the premium to be paid upon such assurance or payable in respect of such policy or for any other consideration.

Execution
of assign-
ments of
policies.

24. All assignments of policies of the Society shall be deemed to be validly and sufficiently authenticated if executed according to the mode usual either in Scotland or in England or in the country where they are executed.

Represen-
tative in
case of
bank-
ruptcy &c.

25. In the event of any person against whom the Society shall have any claim or demand becoming bankrupt or of his estate being sequestrated or in course of liquidation or in the event of such person being desirous of effecting an arrangement with his creditors by means of a trust or by way of composition or otherwise it shall be lawful for the directors by themselves or by an official of the Society duly authorised by them to appoint any agent or other person to represent the Society in all matters and proceedings relating thereto and to prove any debt owing to the Society by any such person and to make any claim demand affidavit or declaration which may be necessary for that purpose and to vote and otherwise act for and on behalf of the Society at all meetings of creditors of such person and otherwise in all respects as if such claim or demand were the claim or demand of the agent or person so appointed to represent the Society and a copy of the resolution or document appointing such agent or person certified to be a true copy by the manager or secretary of the Society shall be conclusive evidence of the authority of such agent or person to represent the Society.

Validity of
acts and
proceedings.

26. All acts done by directors or extraordinary directors or by a committee of directors or by a local board or by any person acting as a director or extraordinary director or as a member of a committee of directors or as a member of a local board notwithstanding that it may be afterwards discovered that

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there was some defect in the appointment of such directors or extraordinary directors or members of a committee of directors or members of a local board or any such person acting as a director or extraordinary director or as a member of a committee of directors or as a member of a local board or in the formality of their proceedings or that they or any of them were disqualified shall be as valid as if every such person had been duly appointed and qualified and such proceedings had been regular. A.D. 1926.

27. For the purposes of the Policies of Assurance Act 1867 every life policy issued by the Society shall be deemed to be a "policy" and a "policy of life assurance" within the meaning of that Act. All life policies of Society deemed within Policies of Assurance Act 1867.

28. No assignment to the Society whether dated before or after the commencement of this Act by way of security for money borrowed of any policy granted by the Society shall be deemed to extinguish any obligation of the Society for payment of the sums assured under such policy but the said policy and any such assignment thereof shall during the periods for which they are respectively granted have according to their respective terms full force and effect. Effect of assignment to Society of its own policies.

29. The life policy or life policies belonging to every member of the Society for the time being with the whole profits bonuses and advantages thereto pertaining and the interest which he has in the funds of the Society shall be subject to and charged with and the same shall be held to be assigned to and to belong to the Society in security of any debts or obligations that are or may become due and owing or are or may be undertaken by him to the Society and the directors are hereby authorised and empowered to sell and dispose of the same when necessary with the profits bonuses and advantages aforesaid according to such rules as shall be fixed by the directors but whenever an assignment in favour of a third party has been made and intimated to the Society no debt subsequently contracted to the Society shall compete with such assignment. Policies subject to debts due by members to Society.

30. The person in whom the benefit of any life policy is for the time being legally vested whether such person is beneficially entitled thereto or holds Power to surrender and deal

[Ch. lxxviii.] *Scottish Widows' [16 & 17 GEO. 5.]
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A.D. 1926. the same as mortgagee of or as trustee for any other person may (unless being a mortgagee or trustee he is expressly prohibited from so doing by the terms of his mortgage or trust) surrender in whole or in part to the Society the benefit of such policy including any bonus additions thereto or any such bonus additions separately either for a cash payment or in consideration of the policy being converted into a paid-up policy for a reduced amount or in exchange for any paid-up or other policy to be substituted for the original policy or (where any such bonus addition is separately surrendered) in consideration of a permanent reduction in the premium on the policy to which such addition was made or may (except as aforesaid) make any such surrender as aforesaid for any other consideration or may otherwise deal with such policy and bonus additions as may be agreed between such person and the directors and if the benefit of any policy is legally vested in the Society as mortgagee or charged to it by way of deposit or otherwise the power of sale vested in the Society by virtue of such mortgage or charge may be exercised by the surrender to itself of such policy the Society giving credit or otherwise accounting for the surrender value of such policy Any surrender or agreement made or entered into under this section shall be valid and effectual in all respects.

Discharge
of sums
payable
under
policies.

31.—(1) Where any sum is payable by the Society in respect of any policy the Society may require a receipt for such sum in such form as shall be prescribed by the directors and may pay such sum to any person tendering such receipt (either endorsed on or separate from the policy) signed by the person entitled to receive such sum in the presence of one witness and such receipt shall be a complete and sufficient discharge to the Society.

(2) The directors may in their discretion pay such sum before it becomes payable in terms of the policy upon such terms as they think fit.

(3) Confirmation issued by any competent court in Scotland in favour of the executors of a deceased person and probate or letters of administration or other grant of representation issued by any competent court in England in favour of the executors, administrators or other representatives of a deceased person

shall be to the Society for all purposes a good and sufficient title in favour of such executors or of such administrators or other representatives as the case may be. A.D. 1926.
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(4) Where any sum is payable by the Society in respect of any life policy to the legal representatives of any person by whom the policy was effected who shall have died domiciled elsewhere than in Great Britain or Northern Ireland the directors may if they think fit pay such sum to such legal representatives on production at the office of the Society where such sum is payable of the confirmation or probate of the will of such person deceased or letters of administration or other grant of representation of his estate whether obtained in Great Britain or Northern Ireland in India or in any British dominion colony or dependency or of other evidence satisfactory to the directors that the persons claiming such sum are the legal representatives of such person deceased in the country in which (a) such policy may have been issued or (b) such sum shall be payable or (c) such person deceased may have been domiciled and the receipt of such legal representatives shall be a complete and sufficient discharge to the Society and the Society shall not be bound to see to the application of the moneys paid on any such receipt.

32. Where any policy issued or granted by the Society is subject to any trust whether express implied or constructive the Society may pay any sum in respect thereof to the trustees thereof whose receipt shall be a complete and sufficient discharge to the Society for the same notwithstanding any claim or demand whatsoever of any other person entitled thereto and the Society shall not be bound to see to the application of the moneys paid on any such receipt. Society may pay on receipt of trustees.

33. Every director extraordinary director trustee officer and servant of the Society shall be indemnified by the Society against and it shall be the duty of the directors out of the funds of the Society to pay all costs losses and expenses which any such director extraordinary director trustee officer or servant may incur or become liable to by reason of any contract entered into or act or deed done by him as such director Indemnity.

[Ch. lxxviii.] *Scottish Widows' [16 & 17 GEO. 5.]
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A.D. 1926. extraordinary director trustee officer or servant or in
— any way in the discharge of his duties.

Individual
responsi-
bility.

34. No director extraordinary director or trustee of the Society shall be liable for the acts receipts neglects or defaults of any other director extraordinary director or trustee or of any officer or servant of the Society or for joining in any receipt or other act for conformity or for any loss or expense happening to the Society through the insufficiency or deficiency of title to any property acquired by or by order of the directors for or on behalf of the Society or for the insufficiency or deficiency of any security in or upon which any of the moneys of the Society shall be invested or for any loss or damage arising from the bankruptcy insolvency or wrongful act of any person with whom any moneys securities or effects shall be deposited or for any loss or damage occasioned by any error of judgment or oversight on his part.

Costs of
Act.

35. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Society.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1926.

REGULATIONS OF THE SOCIETY.

I.—MEMBERSHIP.

1. Every applicant for a life policy shall also apply to be admitted a member of the Society and except as provided in regulation No. 7 no person shall be admitted a member of the Society unless assured under a life policy issued by the Society either on his own life or on the life of another. Who shall be admitted as members.
2. Every person applying to be admitted a member shall subscribe a declaration in a form approved by the directors which declaration shall declare the applicant's accession to the Laws of the Society and shall contain such other particulars and information as the directors may require. Declaration by applicants for membership.
3. If the directors shall consider that a proposal for membership and for a life policy is eligible and shall resolve that the applicant be admitted a member and that a life policy be issued to him and if the applicant shall duly make payment to the Society of the single or first premium payable in respect of the said policy there shall be delivered to him a policy duly executed in accordance with the Laws of the Society and specifying the benefit intended to be secured out of the funds of the Society and the conditions and contingencies upon which the same is to be payable and depend and subject to the Laws of the Society the applicant shall become a member of the Society and be entitled to all the benefits and advantages of the Society corresponding to his interest under the policy. Admission of members.
4. On the happening of the contingency upon which depends or arises the sole or final benefit expressed in any policy of the Society the person entitled to such benefit shall upon proof satisfactory to the directors of such contingency having happened become a creditor on the funds of the Society for the sum payable under and by virtue of such policy and thereupon membership under and by virtue of such policy shall if previously existing cease and determine. When membership ceases and persons entitled to the benefit of policies become creditors on the funds.
5. A member admitted either when any life policy is issued or subsequently in pursuance of these regulations shall subject to the Laws of the Society remain a member in respect of the policy until some other person shall have been admitted as a member in his room and stead in manner herein provided. Retention of membership until substitute member admitted.

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Assignments
&c. not to
create
membership.

6. Except as provided in regulation No. 7 and subject to the conditions therein contained assignment or other transmission or devolution of a policy shall not confer membership in respect of such policy and no assignee or transferee whether legal or contractual (including assignees in trust assignees or trustees in bankruptcy judicial factors and receivers) shall as such be entitled to attend or to vote at meetings of the Society or to have any voice in its affairs.

Substituted
membership.

7.—(1) In any case in which by the terms of a policy which confers membership of the Society or in consequence of assignment or other transmission or devolution some one person (hereinafter called "the substitute") other than the existing member in respect of such policy has the right to the benefit secured by such policy the substitute may if the directors think fit and on such terms as to payment of costs or otherwise as they may require be admitted a member in respect of the policy in room and stead of the existing member provided that the substitute comply with the following requirements :—

- (a) He shall subscribe a declaration that he accedes to the Laws of the Society which Laws shall then be binding on him to all intents and purposes ; and
- (b) He shall also prove to the satisfaction of the directors either (I) that he has by legal devolution become vested in the absolute legal right to the whole of the benefit under the policy or (II) that he is vested in the absolute right both legal and beneficial to the said benefit and that he either acquired such right for onerous or valuable consideration in money or money's worth or that the existing member has consented to the admission of the substitute as a member in the stead of the existing member.

(2) In this regulation " existing member " means the member (whether original or substituted) last admitted to membership of the Society in respect of the policy.

(3) On the admission of a substitute in respect of any policy under this regulation the membership of the previously existing member in respect of such policy shall absolutely cease and determine.

Rights of
attending
meetings
and of
voting
thereat.

8. Every member of the Society who complies with the conditions of his policy or policies and with the Laws of the Society shall subject to the Laws of the Society be entitled to attend and vote at the meetings of the Society but saving as hereinafter provided in regulation No. 18 no person other than a member personally present shall be entitled to vote at the meetings of the Society.

II.—GENERAL MEETINGS.

A.D. 1926.

9. There shall be one stated annual meeting of the Society held in Edinburgh or other the place in which the head office may be situate on such day in each year as the directors may appoint not being later than the last Tuesday in June or such other day as a meeting of the Society may from time to time appoint either specially or generally as the latest date for such stated annual meeting In addition to this stated annual meeting a special meeting of the Society may be held at any time if the directors think fit and shall be held if one-third of the directors or any number not less than twenty-five of the members holding life policies for sums assured amounting in all to not less than fifty thousand pounds exclusive of additions by way of bonus shall require a special meeting of the Society to be called or in any other case provided by the Laws of the Society.

Meetings
of Society.

10. Except as otherwise provided for by the Scottish Widows' Fund and Life Assurance Society's Act 1926 every meeting of the Society shall be called by advertisement in such newspapers published in Edinburgh Glasgow and London as the directors shall appoint once in the week ending on the day before the meeting and in the week immediately preceding that week and in the case of a special meeting the advertisement shall shortly specify the purposes for which the meeting is called.

Method of
calling
meetings of
Society.

11.—(1) All meetings of the Society called for particular purposes shall only deal with the particular business notified in the advertisement of such special meetings.

Business at
meetings.

(2) The ordinary business of each stated annual meeting shall be to consider the accounts and balance sheet and the ordinary reports of the directors and auditors and any special report or other matters connected with the business or affairs of the Society referred to the meeting by the directors to elect directors and extraordinary directors (if any) in the place of those retiring to elect or re-elect one or more auditors to determine the remuneration or extra remuneration to be paid to the directors and extraordinary directors and auditors for their services and to transact any other business which under the Laws of the Society ought to be transacted at the stated annual meeting of the Society.

No business other than ordinary business as above defined shall be transacted at any stated annual meeting except with the approval of the directors and unless notice of the further business to be transacted thereat shall have been given in the notice convening the meeting.

12. The quorum for a meeting of the Society shall be twenty-one members except for the purpose of the election of directors and extraordinary directors and the appointment of an auditor

Quorum for
meeting.

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A.D. 1926. or auditors at the stated annual meeting of the Society which election and appointment shall be carried out although the number of members present be less than the quorum aforesaid.

In case no
quorum.

13. If within fifteen minutes from the time appointed for any general meeting a quorum is not present the meeting if convened on a requisition of members as aforesaid shall be dissolved and no motion for adjournment shall be entertained and this provision shall apply as well to any adjournment of a meeting convened on such requisition as aforesaid as to the original meeting.

In the case of any other meeting the meeting shall stand adjourned to the same day in the next week at the same time and place or such other time and place as shall be agreed to at the meeting and if at such adjourned meeting a quorum as above defined is not present within fifteen minutes from the time appointed for holding the meeting the members present shall be a quorum.

Chairman at
meeting.

14. At all meetings of the Society the president of the Society and failing him the chairman of directors shall be entitled to take the chair and failing him the chair shall be taken by any member nominated by the directors present at such meeting.

Adjourn-
ment of
meeting.

15. The chairman may with the consent of any meeting adjourn the meeting from time to time and from place to place but no business shall be transacted at any adjourned meeting except business which might lawfully have been transacted at the meeting from which the adjournment took place.

It shall not be necessary to give any notice of an adjournment or of the business to be transacted at any adjourned meeting.

Voting at
meetings.

16. In all cases not otherwise specially provided for questions arising at a meeting of the Society shall be determined by a simple majority of the members personally present and qualified to vote and in case of equality the person in the chair shall have a casting vote.

A declaration by the chairman that a resolution has been carried or carried unanimously or by a particular majority or lost and an entry to that effect in the Society's minute book shall be conclusive evidence of the fact without further proof.

Votes of
joint
members.

17. If two or more persons are members of the Society by virtue of one and the same policy any one of such members personally present at a general meeting may vote as if he were the sole member qualified to vote in respect of such policy Provided that in case more than one of such persons be present personally at a general meeting the one of such persons so present whose name stands first in the said policy and no other person shall be entitled to vote as if he were the sole member qualified to vote by virtue of the policy.

18. A corporation being a member of the Society and qualified to vote may from time to time by resolution of its directors authorise any of its officials to act as its representative at any general meeting of the Society and the person so authorised shall on production of evidence of such resolution be entitled on behalf of such corporation to attend every general meeting and to vote as if he were himself a member of the Society. Save as by this regulation provided no member shall be entitled to vote at any general meeting unless he is personally present thereat.

A.D. 1926.
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Votes of
corporation.

19. No resolution of or proceedings at any general meeting shall be invalidated by reason of its being discovered subsequent thereto that one or more of the members attending the same and voting thereat were not qualified to vote.

Validity of
proceedings.

III.—APPOINTMENT &C. OF DIRECTORS.

20. The number of directors shall be such number not being more than sixteen or less than eight as may from time to time be determined by resolution of the directors. Provided that a meeting of the Society may at any time appoint an additional one or more directors in excess of the maximum number prescribed by this regulation if that course is recommended for special reasons by a resolution passed or approved by three-fourths of the directors for the time being in office.

Number of
directors.

21. The directors may appoint any qualified person to be a director in the place of any director who has died or resigned or ceased to be a director under the provisions of the Laws of the Society (otherwise than by retirement at the stated annual meeting of the members in accordance with the provisions of these regulations in that behalf) but the person so appointed shall remain in office only until the next election of directors at the stated annual meeting of the Society when he shall retire but shall be eligible for re-election.

Temporary
filling of
vacancies in
directorates.

22. The directors may at any time appoint an additional one or more directors over and above the number for the time being in office (and notwithstanding that such appointment may increase the number of directors to a number in excess of the maximum otherwise applicable under these regulations) if they so decide for special reasons by a resolution passed or approved by three-fourths of the directors for the time being in office but any person so appointed shall remain in office only until the next election of directors at the stated annual meeting of the Society when he shall retire but shall be eligible for re-election.

Appointment
of directors
in special
cases.

23.—(1) At the stated annual meeting of the Society each year three of the directors shall retire in addition to any directors who may retire in pursuance of the provisions of these regulations

Retirement
and election
of directors.

[Ch. lxxviii.] *Scottish Widows' Fund and Life Assurance Society's Act, 1926.* [16 & 17 GEO. 5.]

A.D. 1926. — as to the temporary filling of vacancies in the directorate and as to the appointment of directors in special cases The meeting shall elect three directors to fill the places of those retiring as aforesaid Any directors retiring under this regulation shall be eligible for re-election.

(2) The order in which the directors shall retire in terms of the preceding sub-division of this regulation shall from time to time be determined by the directors.

Default in election of directors.

24. If at any stated annual meeting of the Society the members shall fail to elect directors to fill the places of those retiring the directors retiring shall if willing to act be deemed to have been re-elected.

Directors may act notwithstanding vacancy.

25. The continuing directors may act notwithstanding any vacancy in their body and no act or proceeding of the directors or any of them or of an extraordinary court either before or after the commencement of the Scottish Widows' Fund and Life Assurance Society's Act 1926 shall be invalid or open to be called in question on the ground merely that at the time when such act or proceeding took place any vacancy or vacancies existed in the number of directors of the Society as constituted at the date of such act or proceeding Provided that if the number of directors shall fall below the prescribed minimum number the directors shall forthwith take the necessary steps to make up such minimum number.

Qualification of directors.

26. Every director must be a member of the Society and must have such interest therein as may from time to time be fixed by resolution (if any) of a meeting of the Society.

Remuneration of directors.

27.—(1) Until the date of the stated annual meeting of the Society next subsequent to the date of the commencement of the Scottish Widows' Fund and Life Assurance Society's Act 1926 the remuneration to be paid to the directors for their trouble and attendance shall be as fixed by the resolution of the general court of the Society dated the 1st day of March 1910.

(2) After the date of the said annual meeting the said remuneration shall be such as may be fixed from time to time by general meeting of the Society but until so fixed it shall be such an aggregate annual sum as after deduction of a sum equal to income tax at the standard rate on such aggregate sum would leave an amount sufficient to provide for each director an annual payment at the rate of five hundred guineas per annum calculated in respect of the period for which he shall have held office during the year in respect of which the remuneration is to be computed Such aggregate annual sum shall be divided among the directors in such proportions as they may by resolution from time to time decide.

[16 & 17 GEO. 5.] *Scottish Widows' [Ch. lxxviii.]
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(3) If a director be called upon for any purposes of the Society to perform extra services of any kind or to bear travelling or other expenses or both the directors may give to such director such extra remuneration as they may think fit. A.D. 1926.
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28. A director may resign at any time by notice in writing of his resignation signed by him and sent to or left at the head office of the Society. Directors may resign.

29.—(1) A meeting of the Society may remove a director before the expiration of the term of his office. Removal of directors.

(2) The directors at a meeting specially called for the purpose may by a resolution in which not less than three-fourths of the total number of directors for the time being in Great Britain shall concur remove from office a director whose continuance in office shall appear to the directors voting in favour of such resolution to be prejudicial to the interests of the Society.

30. The office of a director shall be vacated—

If he become bankrupt or suspend payment or compound with his creditors;

If he be found lunatic or become of unsound mind;

If he cease to hold the necessary qualification;

If he shall without permission from a meeting of directors have been absent from all the meetings of directors held during any six consecutive months and a resolution that he has so ceased to be a director shall have been minuted by a meeting of directors.

Vacation of office of director in certain cases.

31. A director may hold any other office or place of profit under the Society (except the office of auditor) in conjunction with the office of director and on such terms as to remuneration tenure of office duties and otherwise as the directors think fit and a person shall not be disqualified from being appointed or acting as a director by reason of his holding or any partner of his holding any such other office or place of profit. Director may hold other office except auditor.

32. A director shall not be disqualified by his office from contracting with the Society either as vendor purchaser or otherwise nor shall any such contract or any contract or arrangement entered into by or on behalf of the Society in which a director shall be in any way interested be avoided nor shall a director so contracting or being so interested be liable to account to the Society for any profit realised by any such contract or arrangement by reason only of such director holding that office or of the fiduciary relation thereby established : Certain acts not to disqualify.

Provided that the nature of his interest must be disclosed by him at the meeting of the directors at which the contract or arrangement is determined on if his interest then exists or in any

[Ch. lxxviii.] *Scottish Widows'* [16 & 17 GEO. 5.]
Fund and Life Assurance Society's Act, 1926.

A.D. 1926. — other case at the first meeting of the directors after the acquisition of his interest :

Provided further that no director shall as a director vote in respect of any contract or arrangement in which he is so interested as aforesaid and that if he do so vote his vote shall not be counted but this prohibition may at any time or times be suspended or relaxed to any extent by the Society in general meeting.

General
notice as to
director's
interest.

33. A general notice that a director is a member of any specified firm or company and is to be regarded as interested in all transactions with that firm or company shall be a sufficient disclosure under the foregoing regulation as regards such director and the said transactions and after such general notice it shall not be necessary for such director to give a special notice of his interest in any particular transaction with that firm or company.

Disclosure
of interest
to manager.

34. Where a director is directly or indirectly interested in any assurance contract which shall in the ordinary course of business be effected by or through such director through the manager or other proper officer of the Society disclosure to the manager or such other officer that such director is so interested shall be deemed to be sufficient disclosure for the purposes of the foregoing regulations and the manager or such other officer may deal with any such contract as regards terms premium commission or otherwise as freely as he could deal therewith if such director were not so interested.

Directors
may become
members or
directors of
any company
promoted
&c. by
Society.

35. A director may become and continue a member or director of any company promoted by the Society or in which the Society may be interested as vendors shareholders or otherwise and such director shall not be accountable for any benefits received by him as member or director of such company.

IV.—POWERS OF DIRECTORS.

Powers of
directors.

36. Without prejudice to or limitation of the powers general or special otherwise conferred upon the directors by the Laws of the Society and subject thereto the directors shall have the following powers (that is to say) :—

- (1) To make alter and repeal from time to time rules byelaws or minutes for the management of the business of the Society in all its branches and of any other matters relating to the Society that appear to the directors to require regulation provided that such rules byelaws or minutes shall not be inconsistent with the Laws of the Society or with any resolution of the Society in general meeting and that the Society in general meeting may rescind or alter such rules byelaws or minutes without prejudice to anything previously done or suffered thereunder :

[16 & 17 GEO. 5.] *Scottish Widows' [Ch. lxxviii.]
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- (2) To fix and from time to time to alter and vary the forms of the proposals and declarations to be signed by persons applying to be admitted as members of the Society or to effect assurances of any kind with the Society and the forms and conditions of policies and other contracts to be issued by the Society :
- (3) To fix and from time to time to alter the maximum amount of any assurance or annuity to be held at the Society's own risk :
- (4) To grant and effect or reassure assurances and annuities and any other authorised business of the Society for such amounts and at such rates general or special and on such terms and conditions general or special as they think fit :
- (5) To determine the conditions if any as to foreign travel and residence occupation military and naval service and otherwise upon which policies or assurances on lives which shall have been applied for may be granted and in what cases such conditions may be modified or dispensed with :
- (6) In any case or class of cases if they see fit to suspend waive or dispense with all or any of the conditions of forfeiture or other terms or conditions attached to any policy or assurance :
- (7) At any time during the currency of a policy or assurance on the application of or by arrangement with the owner thereof to alter or vary the then subsisting method of making the contributions in respect of such policy or assurance to any other method of equivalent value approved of by the directors or to substitute an assurance payable on the occurrence of any other event or to convert an assurance of one class into an assurance of any other class on such terms and conditions as the directors may deem equitable and proper :
- (8) To allow time for the payment of premiums on policies on such terms and conditions as they think fit :
- (9) To revive or continue on such terms and conditions as they think fit any policy that may have become void or may be in danger of becoming void and that either for the whole or for a reduced amount and for the whole or a limited period :
- (10) To grant ex gratia payments or benefits of such amount and nature as they think fit in the case of any policy or assurance which has been forfeited or become void from any cause :

[Ch. lxxviii.] *Scottish Widows' Fund and Life Assurance Society's Act, 1926.* [16 & 17 GEO. 5.]

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- (11) To redeem or purchase or receive the surrender in whole or in part of any policy or of the bonus additions thereto and to allow such value therefor as they may see fit or to issue or grant in lieu thereof a paid-up policy or assurance for a reduced amount or to convert the original policy or assurance into such paid-up policy or assurance or otherwise to deal with the same as may be arranged with the owner thereof :
- (12) To prescribe and from time to time to vary the rate or differential rates of interest to be charged by and payable to the Society in respect of loans on security of the Society's policies :
- (13) To pay or settle claims at such times on such evidence and in such manner as they think fit :
- (14) To receive moneys on deposit from members and policy holders of the Society and others for such periods and on such terms and conditions special or general as they think fit :
- (15) To draw accept and endorse all bills of exchange promissory notes and other negotiable securities cheques and orders for the payment of money in the name or on account of the Society :
- (16) To give to any person employed by the Society a commission on the profits of any particular business or transaction or a share in the general profits of the Society or of any department thereof and so that such commission or share of profits shall be treated as part of the working expenses of the Society :
- (17) To commence carry on regulate control or bring to an end any branch or class of business which the Society is authorised to transact provided that no class of business other than (a) that of issuing life policies as defined in the Scottish Widows' Fund and Life Assurance Society's Act 1926 and (b) any other class of business which the Society was authorised to transact prior to the commencement of the Scottish Widows' Fund and Life Assurance Society's Act 1926 shall be commenced without the authority of a resolution of a meeting of the Society passed on the recommendation of the directors :
- (18) To form or assist in forming any company or to acquire hold and dispose of shares in any company or corporation now or hereafter existing in any part of the world :
- (19) To institute conduct defend compound or abandon any legal proceedings by or against the Society or its officers or otherwise concerning the affairs of the Society

against or by any person and to compound and allow time for payment or discharge of any debts due and of any claims or demands by or against the Society : A.D. 1926.
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- (20) To refer to arbitration any claim or demand by or against the Society and to observe and perform the awards :
- (21) To enter into all such negotiations and contracts and to rescind or vary all such contracts and execute and do all such acts deeds and things in the name and on behalf of the Society as they may consider expedient for or in relation to any of the matters aforesaid or otherwise for the purposes of the Society :
- (22) To determine from time to time what proportion of the whole expenses of the Society shall be charged against any special fund or special branch or section of the Society's business which determination shall be final and conclusive :
- (23) To form or assist in forming or to acquire the undertaking or control of any society or company which the Society is authorised to form assist in forming acquire or control.

V.—PROCEDURE &C. OF DIRECTORS.

37. The directors shall meet at Edinburgh for the despatch of business at such intervals of time as they may from time to time prescribe and at any other meetings to which they may adjourn or to which they may be specially called by a written notice from the manager or secretary of the Society specifying the business upon which the meeting is convened The quorum for any such meeting shall be three in all cases not otherwise specially provided for. Meetings of directors and quorum thereat.

38. The directors shall from time to time elect one of their number to be their chairman for such period as shall be fixed at the time of such election and may in like manner elect one of their number to be deputy-chairman and in the absence of such chairman and deputy-chairman (if any) at any meeting they shall elect one of the directors present to be chairman of that meeting. Chairman of directors.

39. In all cases not otherwise specially provided for questions arising at a meeting of directors shall be determined by a simple majority of the directors present and qualified to vote and in case of equality the director in the chair shall have a casting vote. Voting at meetings of directors.

40. The directors shall have power when they may think it expedient to appoint from among their number committees to whom they may commit any of the powers of the directors subject to such rules as to the quorum of any such committee or otherwise as they may deem proper and such committees shall report minutes of their proceedings to the next meeting of directors. Committees of directors.

[Ch. lxxviii.] *Scottish Widows'* [16 & 17 GEO. 5.]
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A.D. 1926. VI.—EXTRAORDINARY DIRECTORS EXTRAORDINARY COURT OF
DIRECTORS PRESIDENT AND VICE-PRESIDENTS.

Number of
extra-
ordinary
directors. 41. The number of extraordinary directors shall be such
number not being more than twenty-four as may from time to
time be determined by resolution of the directors.

Extra-
ordinary
court of
directors. 42. A meeting of the directors and the extraordinary
directors together shall constitute an extraordinary court of
directors.

President
and vice-
presidents. 43. One of the extraordinary directors may be selected from
time to time by an extraordinary court to be the president of the
Society and a number not more than six of the extraordinary
directors may be selected from time to time by an extraordinary
court to be vice-presidents of the Society.

Application
to extra-
ordinary
directors of
regulations
relating to
directors. 44.—(1) The directors and a meeting of the Society respec-
tively shall have the same powers in relation to extraordinary
directors as are conferred on them by regulations 21 22 and 29
of this schedule in relation to directors.

(2) Regulations 23 24 25 26 28 31 32 33 34 and 35 of this
schedule shall with the necessary modifications apply to extra-
ordinary directors.

Remunera-
tion of
extra-
ordinary
directors. 45. The remuneration of the extraordinary directors shall
be such as may be fixed from time to time by a meeting of the
Society and until so fixed the extraordinary directors shall be
remunerated for their services by receiving for each attendance
at an extraordinary court fees of such amounts as may be
determined from time to time by the directors.

Vacation of
office of
extra-
ordinary
director
in certain
cases. 46. The office of an extraordinary director shall be vacated—
If he become bankrupt or suspend payment or compound
with his creditors;
If he be found lunatic or become of unsound mind;
If he cease to hold the necessary qualification;
If he shall without permission from an extraordinary court
have been absent from all extraordinary courts held
during any twenty-four consecutive months and a
resolution that he has so ceased to be an extraordinary
director shall have been minuted by an extraordinary
court.

Meetings
of extra-
ordinary
court. 47. There shall be one stated meeting of the extraordinary
court in each year on such day as the directors may from time to
time appoint not being later than the fourth Tuesday of March
or such other day as a meeting of the Society may from time to
time appoint as the latest date for such meeting In addition to
this stated meeting a special meeting of the extraordinary court

shall be held at any time if one-third of the directors present at a meeting of directors and differing in opinion from the majority upon any matter require such matter to lie over and be referred to and decided by an extraordinary court to be specially called for the purpose or if the president of the Society or any two of the vice-presidents or any three persons who are directors or extraordinary directors of the Society shall so require Every meeting of the extraordinary court shall be summoned by notice in writing to all the directors and extraordinary directors requesting them to attend such extraordinary court at the place appointed and at the time appointed which shall not be till ten days at least after the request is issued and in the case of a special meeting specifying the business upon which the court is convened The place of meeting and subject as aforesaid the time of meeting of every extraordinary court shall be fixed by the directors.

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48. The quorum for an extraordinary court shall be such number as may from time to time be fixed by an extraordinary court and until otherwise so fixed shall be seven.

Quorum
for extra-
ordinary
court.

49. At every extraordinary court the president of the Society and failing him the vice-president present who is highest on the roll of extraordinary directors shall be entitled to take the chair and failing any vice-president the directors and extraordinary directors present shall elect one of their number to be chairman.

Chairman
of extra-
ordinary
court.

50. In all cases not otherwise specially provided for questions arising at an extraordinary court shall be determined by a simple majority of the directors and extraordinary directors present and qualified to vote and in case of equality the director or extraordinary director in the chair shall have a casting vote over and above his original vote.

Voting at
extra-
ordinary
court.

51. In case at any time one-third of the directors present at a meeting of directors shall be of a different opinion from the majority it shall be in the power of the dissentients to require that the matter upon which such difference of opinion shall have arisen shall lie over and be referred to an extraordinary court either assembled at their next stated meeting or at a special meeting to be called for the purpose and the said matter shall lie over and be referred accordingly and any decision of the extraordinary court with respect thereto shall prevail.

Reference
from
meeting of
directors to
extra-
ordinary
court.

52. In case at any time one-third of the directors and extraordinary directors present at an extraordinary court shall be of a different opinion from the majority it shall be in the power of the dissentients to require that the matter upon which such difference of opinion shall have arisen shall lie over and be referred to a meeting of the Society being either the next stated annual meeting of the Society or a special meeting to be called for the purpose Provided always that the time of holding such meeting

Reference
from extra-
ordinary
court to
meeting of
Society.

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A.D. 1926. — of the Society shall not be less than three or more than six weeks from the time at which the matter in dispute shall have been considered by the extraordinary court as aforesaid.

VII.—LOCAL BOARDS.

Directors
may appoint
local boards.

53.—(1) The directors may from time to time appoint any number of persons whether members of the Society or not to be a local board in any place whether in Great Britain or in any other part of the world for the purpose of carrying on the business of the Society at any such place.

(2) The directors may confer on a local board any powers vested in the directors to be exercised within the district for which such local board is appointed.

(3) The directors may out of the funds of the Society pay to the members of a local board such remuneration as the directors think fit.

(4) The directors may from time to time make regulations for the guidance and government of a local board.

(5) The directors may fill up any vacancy on a local board.

(6) The directors may at any time remove any member of a local board and may at any time dissolve a local board.

(7) The directors may authorise a local board to delegate all or any of the powers vested in such local board.

VIII.—TRUSTEES.

Appoint-
ment of
trustees.

54.—(1) The directors may from time to time appoint any directors extraordinary directors or officers of the Society or any other persons or corporations as trustees for the Society to accept and hold any property mortgage investment or security belonging to the Society or in which it is interested in trust for the Society or for any other purposes and may execute and do all such deeds and things as may be requisite in relation to any such trusts and may provide for the remuneration of such trustees.

(2) The directors may authorise any trustees to delegate all or any of the powers vested in such trustees.

(3) The several persons who for the time being hold property as trustees for the Society shall act in all respects under and in accordance with the instructions of the directors.

IX.—OFFICERS AND AGENTS.

Directors
may appoint
officers and
agents.

55. The directors shall have power to appoint and employ such managers secretaries actuaries medical officers and other officers law agents solicitors physicians surgeons agents local

auditors accountants bankers brokers clerks servants and other persons as they may think fit for conducting the business of the Society in Great Britain or elsewhere and to require such security (if any) for the discharge and performance of their respective duties and offices as the directors shall think fit and to fix and vary from time to time their emoluments duties and terms of employment and to suspend or remove any of them when the directors shall think fit without being obliged to assign any cause therefor and to give to them such gratuities or commissions as the directors think fit for extra or special services and to grant to employees or ex-employees or to their wives widows families connexions and dependents pensions and retiring allowances or gratuities or either during their employment or upon their retirement to vote sums of money to be paid to them or to their wives families connexions and dependents by way of honorarium and generally to exercise all the powers of the Society in relation to employees ex-employees and their wives widows families connexions and dependents.

A.D. 1926.

56. It shall be in the power of the directors to set apart and specially appropriate as a guarantee fund to secure the Society from any loss consequent on defalcations of any persons from time to time in its employment or to contribute to any such guarantee fund that may be formed under their sanction (and whether or not involving contributions by the employees) such sums as the directors shall think fit and the administration of such guarantee fund shall be in the hands of the directors who may make such rules as to the application of such guarantee fund (whether set apart by them or formed under their sanction) as they may consider expedient. Provided always that in the event of the accumulations of such guarantee fund exceeding an amount which the directors shall consider necessary for the objects above specified they may pay over such surplus to a committee to be from time to time appointed under their direction who may from time to time apply the same or any part thereof at their discretion for the benefit of any person who is or has been in the employment of the Society or of the wife widow or other dependent of any such person in such manner as they may see fit.

Guarantee fund.

X.—SEAL.

57. The directors shall provide for the custody of the common seal of the Society and may make regulations as to the formalities to be observed when the seal is to be affixed to any deed or other writing.

Seal.

XI.—EXECUTION OF DEEDS POLICIES AND OTHER DOCUMENTS.

58.—(1) All deeds and other writings required to be executed by the Society shall be sufficiently executed by being signed by

Execution of deeds policies

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A.D. 1926.
—
and other
documents.

two of the directors of the Society and either by the manager or by the secretary or other officer of the Society duly authorised by the directors to sign the same and shall be equally binding whether attested by witnesses or not and whether executed under the common seal of the Society or not.

(2) Assignments charges and other documents of security executed in respect of the grant by the Society of loans over policies of the Society may be legally discharged under the hand of any one of the following that is to say the manager or secretary of the Society or such other officers of the Society as shall from time to time be authorised by the directors to grant such discharges.

(3) All cheques bills of exchange promissory notes warrants receipts notices and other writings requiring execution or authentication by the Society shall be valid and effectual to all intents if signed by the manager or secretary or other officer of the Society authorised by the directors.

(4) All policies shall be valid and effectual to all intents if signed by one or more directors and by the manager or secretary of the Society or such other officer of the Society as shall from time to time be authorised by the directors.

XII.—POWERS OF ATTORNEY.

Directors
may grant
powers of
attorney.

59.—(1) The directors may from time to time by power of attorney appoint any persons in any part of the world to be attorneys of the Society for such purposes and with such powers authorities and discretions and for such period and subject to such conditions as the directors think fit and any such appointment may if the directors think fit be made in favour of members of a local board appointed by the directors or in favour of any company or firm or in favour of the members directors nominees or managers of any company or firm or in favour of any fluctuating body of persons whether nominated directly or indirectly by the directors or in favour of the holder for the time being of any office and any such power of attorney may contain such powers for the protection or convenience of persons dealing with such attorneys as the directors think fit.

(2) The directors may authorise attorneys appointed by them to delegate all or any of the powers vested in such attorneys.

XIII.—INVESTMENT OF FUNDS.

Investment
of funds.

60.—(1) In this regulation if and so far as the context admits the word "purchase" shall include acquisition by subscription allotment tender underwriting exchange partition or otherwise.

(2) Any investment or loan authorised by this regulation may be made by the directors either alone or jointly or in conjunction with other investors. A.D. 1926.
—

(3) Subject to any restrictions imposed by the Society in general meeting or by this regulation the directors may from time to time lay out and invest either by way of purchase or loan any of the funds of the Society in or upon all or any of the under-mentioned investments securities and obligations in any part of the world and whether payable to bearer transferable by delivery or otherwise (that is to say) :—

- (i) Land or any interest therein or right connected therewith or in building upon or otherwise improving or developing such land ;
- (ii) Superiorities feuduties ground annuals ground rents head rents chief rents or rent charges or any kind of rents or income arising out of or charged on land ;
- (iii) Policies annuities or contracts of any kind of the Society or of any other company society or institution ;
- (iv) Life interests or reversionary or other interests whether immediate postponed vested absolute contingent or expectant and whether determinable or not in property of any kind and with or without policies of life assurance ;
- (v) Government or public stocks funds bonds annuities bills documents of debt securities or obligations ;
- (vi) Bonds mortgages notes debentures debenture stocks or other obligations securities or funds annuities guaranteed rent charge or lien stocks or shares preference or preferred stocks or shares preferred or deferred ordinary stocks or shares and ordinary founders or other stocks or shares of or deposits with any state county municipality local authority corporation company firm trust or body and generally moveable and personal estate property and funds of every description ;
- (vii) Bonds bills notes personal obligations covenants or other obligations of any corporation company firm trust body or individual where specific property heritable real personal or moveable is vested in any corporation company trust body or individual in trust or otherwise pledged or hypothecated for securing the payment of the sums exigible under such bonds bills notes covenants or other obligations ;
- (viii) Any other property investments securities or obligations specific or general from time to time authorised by a resolution of the Society in force for the time being :

Provided that except so far as the same may be authorised under the foregoing subsection (3) (viii) no part of the funds of

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A.D. 1926. — the Society shall be laid out or invested (a) in the purchase of or on the security of any stocks or shares which are not fully paid up or the ownership of which would involve the Society in any liability for calls or contributions except such as are made or determined prior to such investment and are payable at specified fixed dates or (b) on the merely personal obligation of any one or more individuals irrespective of other security.

XIV.—BANKING ACCOUNTS OVERDRAFTS AND BORROWING OF MONEY.

Banking
accounts
overdrafts
and borrow-
ing of
money.

61. The directors may open banking accounts in the name of the Society with such bank or banks as they may select. Each account shall be operated on by such of the directors officers or agents of the Society as the directors may authorise to that effect and under such regulations and conditions as may be made from time to time by the directors and if at any time the directors shall deem it expedient in the interests of the Society to obtain advances by overdraft or to borrow money or receive deposits from any one or more of the said banks or from any other banks financial companies or other lenders they shall have power to do so for such amounts in such form and manner and on such terms and conditions as they may approve and to grant such securities (if any) therefor as may be arranged over the funds and property of the Society or any part thereof.

XV.—BOOKS AND ACCOUNTS.

Books and
accounts
to be kept.

62. The directors shall cause full and true books and accounts to be kept in such form as shall seem to them most suitable for preserving an accurate and distinct view of the affairs of the Society.

The books and accounts shall show :—

(1) The sums of money received and expended by the Society and the matters in respect of which such receipt and expenditure takes place; and

(2) The assets and liabilities of the Society :

And in keeping such books and accounts the directors shall have regard to the Laws of the Society and the provisions of any statutes applicable to the Society with respect to the accounts and the separation of the funds of companies or bodies carrying on assurance business.

Annual
account
balance
sheet and
report of
directors.

63.—(1) At the stated annual meeting of the Society in every year the directors shall lay before the members duly audited the revenue account and balance sheet for the last preceding financial year of the Society.

(2) Such account and balance sheet shall be accompanied by a report of the directors as to the state of the Society's affairs and the account balance sheet and report shall be signed in such manner as the directors may from time to time determine and such account and balance sheet when passed at a general meeting shall be deemed and taken to be accurate and correct and shall notwithstanding any subsequent discovery of any error therein be binding and conclusive on all the members.

A.D. 1926.

(3) A printed copy of such account balance sheet and report shall on the application of any member or policy holder be forwarded to him by post or otherwise.

64. The books of the Society shall be open at all convenient times to any of the directors or extraordinary directors who may choose to inspect the same. It shall not be in the power of any other member of the Society to insist upon inspection of the books without having first obtained an order from the directors or a resolution of a meeting of the Society for that purpose.

Books of Society to whom to be open.

XVI.—AUDITORS.

65.—(1) The Society shall at the stated annual meeting of the Society next subsequent to the date of the commencement of the Scottish Widows' Fund and Life Assurance Society's Act 1926 and at each stated annual meeting thereafter appoint an auditor or auditors to hold office until the next stated annual meeting. The auditor in office at the date of the commencement of the said Act shall continue to hold office according to the terms of his appointment until the stated annual meeting next after the date of the commencement of the said Act.

Appoint-ment re-muneration powers and duties of auditors.

(2) If an appointment of auditors is not made at a stated annual meeting the Board of Trade may on the application of any member appoint an auditor of the Society for the current year and fix the remuneration to be paid to him by the Society for his services.

(3) A director extraordinary director or officer of the Society shall not be capable of being appointed auditor of the Society.

(4) A person other than a retiring auditor shall not be capable of being appointed auditor at a stated annual meeting unless notice of an intention to nominate that person to the office of auditor has been given by a member to the Society not less than fourteen days before the stated annual meeting and the Society shall send a copy of any such notice to the retiring auditor and shall give notice thereof to the members either by advertisement in such newspapers published in Edinburgh Glasgow and London as the directors may appoint or in any other mode allowed by the regulations of the Society not less than seven days before the stated annual meeting.

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(5) The directors may fill any casual vacancy in the office of auditor but while any such vacancy continues the surviving or continuing auditor or auditors (if any) may act.

(6) The remuneration of the auditor or auditors of the Society other than any auditor appointed by the Board of Trade shall be fixed by the Society in general meeting except that the remuneration of any auditor or auditors appointed to fill any casual vacancy may be fixed by the directors.

(7) Every auditor of the Society shall have a right of access at all times to the books and accounts and vouchers of the Society and shall be entitled to require from the directors and extraordinary directors and officers of the Society such information and explanations as may be necessary for the performance of the duties of the auditor.

(8) The auditor shall make a report to the members on the accounts examined by him and on every balance sheet laid before the Society in general meeting during his tenure of office and the report shall state—

- (a) whether or not he has obtained all the information and explanations he has required ; and
- (b) whether in his opinion the balance sheet referred to in the report is properly drawn up so as to exhibit a true and correct view of the state of the Society's affairs according to the best of his information and the explanations given to him and as shown by the books of the Society.

XVII.—MISCELLANEOUS.

Minutes of
proceedings.

66.—(1) The directors shall cause minutes of proceedings of meetings of the Society and meetings of the directors and of committees of the directors or of the extraordinary directors or of directors and extraordinary directors and of extraordinary courts and of local boards to be duly entered in books to be provided for the purpose and every entry therein shall be signed by the chairman of the meeting at which such proceedings take place or by the chairman of the next succeeding meeting at which the minutes are approved.

(2) Every such entry so signed shall be received as prima facie evidence in all courts and before all judges justices and others without proof of such respective meetings having been duly convened or held or of the persons making or entering such proceedings being members or directors or extraordinary directors or members of committees of the directors or of the extraordinary directors or of directors and extraordinary directors or of local boards respectively or of the signature of the chairman or of the fact of his having been chairman.

XVIII.—NOTICES.

A.D. 1926.

67.—(1) In all cases in which it may be necessary for any person to serve a summons writ notice or other proceeding at law or otherwise upon the Society by citation notification or intimation in any action suit or process which may be raised or instituted against the Society service thereof upon the manager or secretary personally or by leaving the same at or by transmitting the same by post in a registered letter to the head office of the Society or the principal office of the Society in London shall be deemed to be good service on the Society.

Service of
notices on
Society.

(2) Notices of assignments of policies effected with the Society and other notices not included in the immediately preceding provision of this regulation shall only be deemed to be effectually served upon the Society when deposited at the head office or at such other offices of the Society as the directors may from time to time appoint.

68.—(1) A notice requiring to be given by the Society to the members or any other persons and not expressly provided for by the Laws of the Society shall be sufficiently given if given by advertisement to be inserted at least once in one or more of the Edinburgh newspapers and in one or more of the Glasgow newspapers and in one or more of the London newspapers.

Service of
notices on
members.

(2) A notice requiring to be served by the Society otherwise than by advertisement upon any member whose place of address appears in the books of the Society to be in Great Britain or Northern Ireland may be served either personally or by sending it prepaid through the post addressed to such member at that address.

(3) Each member whose place of address is not in Great Britain or Northern Ireland may from time to time intimate in writing to the Society some place of address in Great Britain or Northern Ireland to be his address for service and any notice requiring to be served otherwise than by advertisement may be served by the Society upon such member by sending it prepaid through the post addressed to such member at that address.

(4) Any such member who has not intimated any such address for service shall be deemed to have waived service of notices other than service by advertisement of notices prescribed by the Laws of the Society so to be served.

(5) When two or more persons are joint holders of any policy a notice requiring to be served otherwise than by advertisement may be served by the Society upon any one of such persons and such service shall be deemed to be sufficient service of such notice upon all the holders of such policy.

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(6) An intimation in writing of every change of name or address of any member shall be forthwith deposited by such member at the head office and in default thereof a notice requiring to be served by the Society otherwise than by advertisement may be served upon such member by sending it prepaid through the post addressed to such member at the registered address of such member and such member shall be deemed to have received such notice.

(7) A notice sent through the post shall be deemed to have been served on the day on which it is posted and in proving such service it shall be sufficient to prove that the notice was properly addressed and posted.

(8) The signature to any notice to be given by or on behalf of the Society may be written or printed.

(9) Where a notice for a specified number of days is required to be given the day of service unless it is otherwise provided shall be counted in such number of days.

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